

2015 WL 5927843 (N.Y.Sup.) (Trial Pleading)
Supreme Court of New York.
Bronx County

Lashonna TURNER, Shanelle Jarvis-Cox, and Akerrie Wilkins, Plaintiff(s),

v.

THE CITY OF NEW YORK, P.O. Michael Summa (Shield #
19628) and Police **Officers** "John Doe" 1-10, Defendant(s).

No. 0025440-2015.
October 2, 2015.

Summons

[Michael F. Rubin](#), Esq., Kelly & Rubin, LLP., 275 Seventh Avenue, Suite 1505, New York, N.Y. 10001, Tel. (212) 691-9393, for plaintiff(s).

To the above named Defendant(s):

YOU ARE HEREBY SUMMONED to answer the complaint in this action and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance, on the Plaintiffs Attorney within twenty (20) days after the service of this summons, exclusive of the day of service (or within thirty (30) days after the service is complete if this summons is not personally delivered to you within the State of New York); and in case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

Dated: New York, New York October 1, 2015

THE PLAINTIFF(s), complaining of the defendants by and through their attorneys, Kelly & Rubin, LLP., respectfully shows to this court and alleges:

1. Upon information and belief that all times hereinafter mentioned, the defendant, The City of New York was and still is a municipal corporation duly organized and existing under and by virtue of the laws of the State of New York.
2. Upon information and belief, that at all times hereinafter mentioned, the defendant The City of New York, its agents, servants and/or employees operated, maintained and controlled the Police Department of the City of New York, including all the police **officers** employed thereby.
3. Upon information and belief, that at all times hereinafter mentioned, Police **officer** Michael Summa was an employee of the Police Department of the City of New York and was acting in his official capacity as such and within the scope of his employment.
4. Upon information and belief, that at all times hereinafter mentioned, the defendants, Police **Officer** "John Doe" 1-10 were employees of the Police Department of the City of New York and were acting in their official capacity as such and within the scope of their employment. That the true identities of said Police **Officers** "John Doe" 1-10 cannot be ascertained until further discovery is conducted.
5. Plaintiffs at all relevant times hereinafter, were and still are residents of Bronx County, City and State of New York.

6. Plaintiff's were arrested on July 13, 2014 in Bronx County, City and State of New York and were charged with violations of the NYS Penal law.
7. Criminal proceedings were commenced at the request of the defendants against all three plaintiffs before a judge of the criminal court in Bronx County.
8. All charges against Ms. Turner were adjourned in contemplation of dismissal on July 13, 2014.
9. All charges against Ms. Jarvis-Cox were dismissed on August 19, 2014.
10. All charges against Mr. Wilkens were dismissed on August 19, 2014.
11. That Notice of the Plaintiffs' Claim and Intention to sue for damages, the nature of the claim and the date of the time when, the place where and the manner in which the claim arose was timely served upon the defendant City of New York on September 29, 2014.
12. That hearings pursuant to § 50h of the General Municipal Law of the State of New York were held on December 5, 2014.
13. That more than 30 days have elapsed since the notice of claim and intention to sue has been served upon the defendants and the said defendants have neglected or refused to make any adjustment or payment thereof.
14. That this action is commenced within one year and ninety days after the causes of action arose.

FIRST CLAIM FOR RELIEF (COMMON LAW BATTERY) AS TO ALL THREE PLAINTIFFS

15. Plaintiffs repeat and re-allege each and every allegation in the preceding paragraphs with the same force and effect as if fully set forth.
16. That on or about the 13th day of July, 2014, the defendants, their agents, servants and/or employees, without just cause or provocation and with great force and violence, seized, battered and laid hold of the plaintiffs.
17. That the defendants, their agents, servants and/or employees, acting as agents and on behalf of the defendants the City of New York and within the scope of their employment, intentionally, willfully and maliciously assaulted and battered plaintiffs, in that they had the real or apparent ability to cause imminent harmful and/or offensive bodily contact and intentionally did a violent and/or menacing act which threatened such contact to the plaintiffs, and that said acts caused apprehension of such contact in the plaintiffs, and defendants in a hostile and/or offensive manner touched and beat the plaintiffs, without their consent and with the intention of causing harmful and/or offensive bodily contact to the plaintiffs and caused such battery.
18. That by reason of the aforesaid intentional assault and battery committed by the defendants, their agents, servants and employees, acting within the scope of their authority, and without probable or reasonable cause, the plaintiffs suffered bodily injury and were rendered sick, sore, lame and disabled, and among other things, suffered conscious pain and suffering, and were otherwise damaged.
19. The defendants are liable for battery to plaintiffs.
20. That by reason of the aforesaid, the plaintiff has been damaged in an amount to be determined at a trial of this action but believed to be in excess of the jurisdictional limits of all lower courts, plus punitive damages, plus costs, attorney's fees and such other relief as this court may deem just and proper.

SECOND CLAIM FOR RELIEF (FALSE ARREST) AS TO ALL THREE PLAINTIFFS

21. The plaintiffs repeat and re-allege each and every allegation in the preceding paragraphs with the same force and effect as if fully set forth herein.

22. That on or about July 13, 2014 in the County of The Bronx, City and State of New York, the defendants their agents, servants and/or employees wrongfully and falsely arrested, imprisoned and detained plaintiffs without any right or grounds therefore.

23. That on or about July 13, 2014, the defendants wrongfully and falsely accused Plaintiffs of a crime or crimes in violation of the New York State Penal Law.

24. That the said arrest and imprisonment was caused by the defendants, their agents, servants and/or employees, without any warrant or other legal process and without authority of the law and without any reasonable cause or belief that plaintiffs were guilty of such crime or crimes.

25. That the plaintiffs were wholly innocent of the said criminal charges and did not contribute in any way to the conduct that defendant, their agents, servants and/or employee undertook, and were forced by the defendants to submit to the aforesaid arrest and imprisonment entirely against their will.

26. That as a result of the aforesaid accusations made by the defendants, their agents, servants and/or employees acting under their employment and within the scope of their authority, made falsely, publicly, and maliciously, the plaintiffs were compelled to appear before a Judge of the Criminal Court of the City of New York, Bronx County.

27. That the defendants, their agents, servants and/or employees, as set forth above on or about the above date, time and place, intended to confine the plaintiffs, the plaintiffs were conscious of the confinement, the plaintiffs did not consent to the confinement, and the confinement was not otherwise privileged.

28. That by reason of false arrest, imprisonment and detention of the plaintiffs, plaintiffs were subjected to great indignities, humiliation and ridicule, in being so detained, charged and prosecuted with various crimes, were prevented and hindered from performing and transacting their necessary affairs and business, and were was caused to suffer pain in both mind and body.

29. That by reason of the aforesaid, the plaintiffs have been damaged in an amount to be determined at a trial of this action but believed to be in excess of the jurisdictional limits of all lower courts, plus punitive damages, plus costs, attorney's fees and such other relief as this court may deem just and proper.

THIRD CLAIM FOR RELIEF (MALICIOUS PROSECUTION) AS TO WILKENS AND JARVIS-COX

30. Plaintiffs repeat and re-allege each and every allegation in the preceding paragraphs with the same force and effect as if more fully and at length set forth herein.

31. That on or about the 13th day of July 2014, before the Honorable presiding Judge of the Criminal Court of the City of New York, Bronx County the defendants, their agents, servants and employees falsely and maliciously and without probable cause or provocation charged **WILKENS AND JARVIS-COX** with violations of the NYS Penal Law.

32. That the plaintiffs were and are wholly innocent of the charges they were alleged by the defendants to have committed, and were forced by the defendants to submit to court proceedings.

33. That upon examination, the said charges were falsely and maliciously made. That a Judge of the Criminal Court of the City of New York dismissed all charges against **WILKENS AND JARVIS-COX** on August 19, 2014.

34. That the said criminal charges and prosecution were instituted and procured by the defendants, their agents, servants and/or employees in this action unlawfully and maliciously and without any reasonable or probable cause whatsoever therefore. That the commencement and/or continuation of the criminal proceedings by the defendants against the plaintiffs were without probable cause, was with actual malice and was terminated in favor of the plaintiffs.

35. That by reason of the aforesaid unlawful and malicious prosecution, the plaintiffs were deprived of their liberty, were subjected to great indignity, humiliation, pain and great distress of mind and body and was held up to scorn and ridicule, were injured in their character and reputation, were prevented from attending their usual business and vocation, were injured in their reputation in the community and the said plaintiffs have been otherwise damaged.

36. That by reason of the aforesaid, the plaintiffs have been damaged in an amount to be determined at a trial of this action but believed to be in excess of the jurisdictional limits of all lower courts, plus punitive damages, plus costs, attorney's fees and such other relief as this court may deem just and proper.

WHEREFORE, plaintiffs demand judgment against the defendants as follows:

On each claim for relief, judgment in an amount to be determined at a trial of this action but believed to be in excess of the jurisdictional limits of all lower courts, and plaintiffs demand an additional sum of punitive damages against each defendant to be determined at the trial of this action; and in the event plaintiffs are a prevailing party, attorney's fees; and interest, costs, and such other relief as to this Court shall seem just and proper.

Dated: October 1, 2015

Yours, etc.,

Michael F. Rubin, Esq.

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